

# Before the Real Estate Regulatory Authority (RERA), Greater Noida

## WRITTEN ARGUMENTS

Complaint No. **NCR144/10/62470/2020**

Complainant: **Neeraj Vohra**

Respondent: **M/s Newtech Promoters & Developers Pvt. Ltd.**

### 1. Case Overview

- **Booking Date:** The complainant booked **Unit F1103 13 years ago**, entrusting the Respondent with timely delivery.
- **RERA Complaint Filed:** The matter has been pending before RERA for **over 5 years (since 2020)**, during which the Respondent has repeatedly made false commitments to deliver possessions.
- **Recovery Certificate (RC) Issued:** On **March 17, 2023**, RERA issued an RC for ₹14,53,215.78 (including penalties up to February 28, 2023). Despite this, the Respondent has failed to comply with payment or possession.

### 2. Respondent's Non-Compliance

- **False Commitments:** Repeatedly assured possession but failed to deliver.
- **Last Hearing:** Respondent's advocate cited "portal issues" to delay uploading possession documents. Case adjourned to June 26, 2025 —a tactic to prolong litigation.
- **Financial Impact on Complainant:**
  - EMI payments + ₹26,000/month rent.
  - Emotional and financial distress due to **11+ years delay**

### **3. Grounds for Action**

#### **a) Violation of Section 40(2) of the RERA Act**

The Respondent has willfully disregarded RERA's orders despite repeated opportunities, attracting penalties under Section 40(2):

#### **b) Violation of Rule 24 of the U.P. RERA Rules, 2016**

### **4. Prayer for Relief**

Under Section 40(2) and Rule 24 of the RERA Act and Rules, the Complainant seeks:

- **Enforce RC:** Immediate payment of ₹14,53,215.78 + interest/penalties from March 1, 2023, until possession (as per Rule 24).
- **Contempt Proceedings:** Under Section 40(2) for willful non-compliance.
- **Blacklist Respondent:** To prevent further malpractices.
- **Possession:**
  - Deliver possession within 30 days or refund with 12% annual interest (Rule 24).
- **Costs:** Reimbursement of legal expenses.

### **Conclusion**

The Respondent's 13-year negligence and bad-faith tactics violate Section 40(2) and Rule 24, warranting strict enforcement to protect homebuyers' rights.

**Date:** 21/05/2025

**Complainant:** Neeraj Vohra

**Contact:** 9871037773